

SECOND AMENDMENT TO GROUND LEASE

THIS SECOND AMENDMENT TO GROUND LEASE ("Second Amendment") is made and entered into as of the 14 day of March, 2022, by and between **SUNSET-MIAMI INVESTMENTS, INC.**, a Florida corporation ("Landlord"), whose address is 1313 Ponce de Leon Boulevard, Suite 200, Coral Gables, Florida 33134, Attention: G. Frank Quesada, Esq., and **ALTA SUNSET, LLC**, a Florida limited liability company ("Tenant"), whose address is c/o ALTA Developers LLC, 2950 SW 27th Avenue, Suite 220, Miami, Florida 33133, Attention: Raimundo Onetto.

WITNESSETH:

WHEREAS, the Landlord and Tenant entered into that certain Ground Lease effective as of September 1, 2018 (the "Lease"; initially capitalized terms used herein and not otherwise defined shall have the meanings set forth in the Lease); and

WHEREAS, in accordance with the terms of the Lease, the Tenant was to obtain the Building Permit for the Construction of the Project not later than within eighteen (18) months after the Effective Date of the Lease. Said eighteen (18) months period expired on March 1, 2020 (the "Building Permit Expiration date"); and

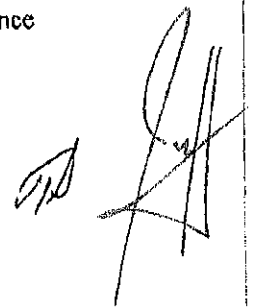
WHEREAS, the Landlord and Tenant agreed to extend the Building Permit Expiration Date until April 1st, 2020; and

WHEREAS, as a result of the delays caused due to the COVID-19 pandemic, the Landlord and Tenant agreed, pursuant to Amendment to Ground Lease, dated September 8, 2020, to further extend the Building Permit Expiration Date to February 1, 2022, with a six-month extension option to August 1, 2022;

WHEREAS, the Tenant has been unable to finalize the building permit process with the City of South Miami within the designated time frame in the Lease, and the Tenant has requested that Landlord further extend such Building Permit Expiration Date as more particularly set forth below.

NOW THEREFORE in consideration of the covenants and conditions contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. The foregoing recitals are true and correct and are incorporated herein in their entirety.
2. This Second Amendment shall be deemed a part of, but shall take precedence over and supersede any provisions to the contrary contained in the Lease, as amended
3. Article 22 is amended and restated as follows:

Handwritten signatures of the parties, including a signature that appears to be 'G. Frank Quesada' and another signature that appears to be 'Raimundo Onetto'.

"Tenant shall have until December 1st, 2022 (the "Building Permit Expiration Date") to obtain a Building Permit from the City of South Miami, Florida. In the event the Building Permit is not issued by the Building Permit Expiration Date, then the Tenant shall have the option to extend the Building Permit Expiration Date (the "Option to Extend") for an additional six (6) months by providing written notice to Landlord of its intent to exercise the Option to Extend ("Notice to Extend"), said written notice to be provided no later than thirty (30) days prior to the Building Permit Expiration Date. After the Building Permit Expiration Date, or the extended Building Permit Expiration Date, if the Building Permit has not been issued, then either Landlord or Tenant shall have the right to terminate the Lease by providing written notice to the other party. In which event (a) the Escrow Agent shall deliver the total remaining balance of the Escrowed Funds to Landlord; (b) Tenant shall pay to Landlord the Base Rent and all other charges required to be paid by Tenant up to the time of such termination of this Lease; (c) Tenant shall quit and surrender the Real Estate and Existing Improvements, if any, to Landlord and shall have no further rights to same whatsoever; and (d) Tenant shall indemnify Landlord for any damages. Tenant shall use commercially reasonable efforts to release any liens, encumbrances, reservations, covenants, dedications, easements of any kind imposed on the Land during Tenant's period of control."

4. The term "Escrowed Funds" shall include all deposits held by the Escrow Agent, Quesada Valdes PLLC, which have been deposited by ALTA SUNSET, LLC ("Tenant/Assignor") and Maestra Sunset, LLC ("Assignee").

5. The Landlord and Tenant acknowledge and agree that the Tenant shall continue paying the Landlord the Base Rent, plus all adjustments stipulated in the Lease.

6. All of the terms and conditions of the Lease except for the changes contained herein shall remain in full force and effect.

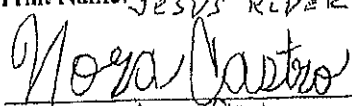
7. Maestra Sunset, LLC, the Assignee of the Ground Lease, pursuant to Agreement to Assign Lease, dated March 16th 2021, approves and accepts the terms of this Second Amendment to Ground Lease.

8. This Second Amendment may be executed in several counterparts, each of which shall be deemed an original, but all constituting only one agreement.

IN WITNESS THEREOF, the Landlord and the Tenant have executed this Second Amendment on the date first written above.

(Signature Pages to Follow)

Signed in the presence of:


Print Name: JESUS RIVERA

Print Name: Nora Castro

Print Name: _____

Print Name: _____

Print Name: _____

M^{rs} GUERIN TORONDO

Print Name: _____

CRISTIAN WAIJEL

LANDLORD:

SUNSET-MIAMI INVESTMENTS, INC., a
Florida corporation

By: 
Name: Teresa Sordo
Title: President

TENANT/ASSIGNOR:

ALTA SUNSET, LLC, a Florida limited
liability company

By: _____
Name: _____
Title: _____

ASSIGNEE:

MAESTRA SUNSET, LLC, a Florida limited
liability company

By: 
Name: ROBERT SCHMECKERT
Title: MANAGER

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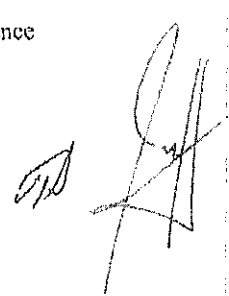
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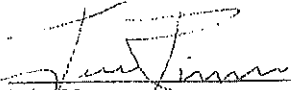
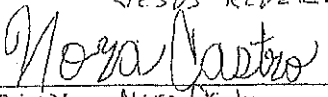
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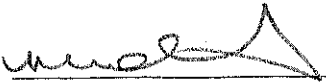
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(Signature Pages to Follow)

Signed in the presence of:


Print Name: JESUS RIVERA

Print Name: Nora Castro


Print Name: Marcela Gomez

Print Name: ANNET TALLE

Print Name: _____

Print Name: _____

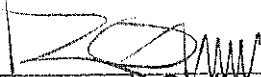
LANDLORD:

SUNSET-MIAMI INVESTMENTS, INC., a
Florida corporation

By: 
Name: Teresa Sordo
Title: President

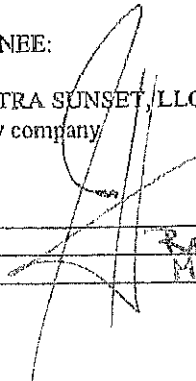
TENANT/ASSIGNOR:

ALTA SUNSET, LLC, a Florida limited
liability company

By: 
Name: Raimundo Ometto
Title: Manager

ASSIGNEE:

MAESTRA SUNSET, LLC, a Florida limited
liability company

By: 
Name: ROBERT SCHWEIKERT
Title: MANAGER